

NY Cannabis Excise Rate Card

Three potency tiers · Worked examples · June 23, 2026 · Source: NY Tax Law §498-b

NYC CAURD Reference

NEW YORK CANNABIS EXCISE TAX — POTENCY TIER SCHEDULE

New York State cannabis excise tax is calculated **per milligram of THC**, not as a flat percentage of sale price. The rate depends on the total THC content of the product — not the category. Your POS system must calculate excise **by potency tier** for each SKU. A flat-rate or percentage-based calculation will produce incorrect remittances.

Low Potency < 35 mg THC

\$0.005 / mg

Typical products: Most beverages, low-dose edibles, micro-dose tinctures

Example	Calculation	Excise owed
20 mg × 100 units	$0.005 \times 20 \text{ mg} \times 100 \text{ units}$	\$10.00

Medium Potency 35 – 80 mg THC

\$0.0125 / mg

Typical products: Standard edibles, pre-rolls, most vape cartridges

Example	Calculation	Excise owed
50 mg × 100 units	$0.0125 \times 50 \text{ mg} \times 100 \text{ units}$	\$62.50

High Potency > 80 mg THC

\$0.022 / mg

Typical products: Concentrates, high-dose capsules, strong edibles

Example	Calculation	Excise owed
100 mg × 100 units	$0.022 \times 100 \text{ mg} \times 100 \text{ units}$	\$220.00

Retail Transfer Tax: In addition to excise, NYC cannabis retailers remit a **retail transfer tax of 9%** on the distributor invoice price (separate from the potency-based excise). Both are due to NYS Tax Department monthly. Missed deadlines trigger interest and penalties.

OCM Audit Risk: If your POS system does not segment excise by potency tier, you may be under-remitting (OCM audit trigger) or over-remitting (cash leak). Reconcile monthly. If you need a full reconciliation report for your dispensary, a 280E Impact & Excise Report is available at a fixed price — see [contra.com](#).

10-Point OCM Audit Readiness Checklist

OCM Compliance

NYC CAURD Licensees · Self-Audit Reference · June 23, 2026

OCM AUDIT TRIGGERS — WHAT THEY CHECK

The Office of Cannabis Management (OCM) is actively auditing CAURD licensees. Run through this checklist before any scheduled OCM interaction or compliance review. Items marked **HIGH** are the most common triggers for fines, license holds, or formal investigations.

01 **Metrc Inventory Reconciliation** **HIGH**

Physical inventory matches Metrc system count. Unexplained variances documented and under review.

02 **COA Currency** **HIGH**

All products have Certificates of Analysis less than 12 months from harvest date. Expired COAs removed from active inventory.

03 **Employee Training Records** **HIGH**

All staff completed required OCA/MRTA training. Records current, on-site, available for inspection.

04 **License & Registration Display** **MEDIUM**

Current OCM license posted in a conspicuous location at each retail entrance. No expired permits displayed.

05 **Product Labeling Compliance** **HIGH**

All products display compliant labels: THC/CBD content in mg, universal symbol, required warnings. No unauthorized health claims.

06 **Age Verification Logs** **HIGH**

ID verification logs maintained. System records show 21+ verification for every transaction. Staff training documented.

07 **Transfer Manifest Completeness** **MEDIUM**

All inbound transfers have complete Metrc manifests. Manifests retained on-site for minimum 3 years.

08 **Excise Tax Remittance Documentation** **HIGH**

Monthly excise calculations by potency tier retained. Remittance confirmation from NYS Tax Department on file.

09 **Financial Records Retention** **MEDIUM**

All financial records (sales, COGS, P&L, tax filings) retained for minimum 3 years and available for OCM review.

10 **Premises Security Compliance** **MEDIUM**

Security camera system operational, 90-day retention minimum. Visitor access log current. Entry/exit points monitored.

Before an OCM visit: Pull your Metrc inventory report and reconcile against physical stock. Verify all COA dates. Confirm excise remittance documentation is filed and accessible. These three items alone account for the majority of audit findings in CAURD licensee inspections.

If you need a documented compliance status report — with your Metrc reconciliation percentage, excise variance flags, and upcoming deadline calendar — a Monthly Compliance Summary is available as a managed service.

Need your exact 280E number?

A 3-page 280E Tax Impact Report — showing your actual federal tax penalty in dollars, excise by potency tier, and margin by category — is available for a fixed fee with 48-hour delivery.

Want monthly visibility?

The Monthly Analytics Package delivers Financial Clarity + Weekly Ops + Compliance Summary every month — from your existing Metrc and POS exports. No new systems. No CFO required.